MINUTES OF THE CITY OF HOLLADAY
PLANNING COMMISSION MEETING

Tuesday, August 19, 2025
6:00 PM
City Council Chambers
4580 South 2300 East
Holladay, Utah

ATTENDANCE:

Planning Commission Members:
Dennis Roach, Chair
Paul Cunningham
Angela Gong
Jill Fonte
Brian Berndt

City Staff:
Carrie Marsh, City Planner
Brad Christopherson, City Attorney

WORK SESSION

Chair Dennis Roach called the Work Session to order at 5:30 p.m. He reported that there are five items on the Regular Meeting agenda, including one Public Hearing item, two Discussion Items, and two Action Items. It was noted that there was an issue with the Public Hearing notice and it is one day short of the 10-day notice requirement. As a result, the hearing will be continued instead of being closed. The Planning Commission is still able to discuss the Public Hearing item on the agenda.

The agenda items were reviewed and discussed. Chair Roach suggested that the Planning Commission discuss Items 2 and 3 before discussing Items 1A and 1B on the agenda. Before the discussion, Chair Roach reported that Commissioner Karianne Prince was absent from the meeting, but all other Commissioners were present.

City Planner, Carrie Marsh, shared information about Item 2 on the Regular Meeting agenda and suggested that it be considered first so the applicant can move on with their evening instead of waiting for the other discussions to take place. Ms. Marsh reported that the Action Item on the meeting agenda relates to the "Oly Vista" Subdivision Amendment. This was a Subdivision Planned Unit Development ("PUD") that was done in 2022. The property is located at 4877 South Holladay Boulevard and is located in the R-1-10 Zone. The property owner is seeking to add an area of land located on the east side of their property to the existing subdivision. The land area is 15 feet wide and 140.84 feet long. The amendment would change the boundary of the subdivision from its existing location to incorporate the additional area. She explained that the Planning Commission is the Land Use Authority for Subdivision Amendments when the boundary changes.

Chair Roach asked to review a map of the area. Ms. Marsh offered to share images with the Commission. Commissioner Paul Cunningham asked what this addition will allow the property owner to do on the site that cannot be done currently. Ms. Marsh clarified that the addition will not change what is currently allowed on the site. City Attorney, Brad Christopherson, explained that when the Legislature amended the Land Use, Development, and Management Act

("LUDMA") for cities, public hearings for subdivision modifications were eliminated, but it is still a Planning Commission requirement. In order to amend a Subdivision Plat, there needs to be Planning Commission approval. Chair Roach believed that in the R-1-10 Zone, it would be possible to have two dwellings on the lot without the extra land, which was confirmed. Ms. Marsh reported that the segment of land has a slope and there have been drainage issues. The land is being purchased, so there is some extra space. Chair Roach stated that this application is straightforward.

There was discussion regarding the Meeting Minutes. There were no proposed amendments for the May 6, 2025, Meeting Minutes. Chair Roach noted that the Meeting Minutes from July 15, 2025, have a typo on Page 12. There was a reference made to "Ms. March" rather than "Ms. Marsh".

Chair Roach reported that the remainder of the Work Session will be focused on the "Amare Vita" application. Ms. Marsh explained that this is a unique PUD, as it is split between two different zones. The total land area is 11.42 acres. The east side of the creek has one-acre lots and the west side of the creek has two-acre lots. She shared a Zone Map with the Commission for reference. All of the lots that front onto Holladay Boulevard have the R-1-43 Zone. Ms. Marsh pointed out the area that is within the R-1-87 Zone. The applicant's plan is to put in a singular entrance on the Murray Holladay side with a private road. There would also be an entrance on 6200 South.

Chair Roach pointed out that there are four existing parcels, with three in the R-1-43 Zone and one in the R-1-87 Zone. Ms. Marsh added that there are 4.29 acres in the R-1-87 Zone and 7.18 acres in the R-1-43 Zone. There is 0.42 acres of excess across the entire project, which is where a lot of the road area comes from. As for the assessment for the Conceptual Subdivision, all of the lots on the R-1-43 side were accessed off of Holladay Boulevard. There is enough land area there for seven lots. The Staff Report states that natural features are candidates for variances under the State requirements, because there are certain limitations on the buildable area. Parcels on the east side of the property would require a variance to reduce the minimum lot width from 100 feet to the widths shown on the conceptual plan. The applicant would pursue a variance with the Subdivision.

Chair Roach referenced the image that was shared. He noted that it shows a 100-foot creek setback and wondered whether that is mandated or if that is what is proposed. Ms. Marsh is not sure how it would apply, because in this situation, there is one parcel that is undeveloped and undeveloped parcels have a 100-foot creek setback. The parcels that are already developed have a 50-foot creek setback. Chair Roach believed that, based on the lot configuration, anywhere that does not have an existing structure would need to be set back 100 feet. Ms. Marsh confirmed this.

Commissioner Cunningham asked if the City's benefit is the preservation of the creek corridor. Ms. Marsh clarified that this relates to the PUD portion of the application. When there is private property, there will not always be a City benefit. Sometimes, the City benefit is open space or preservation of trees. There is no requirement for dedication of public areas or public amenities that are accessible on private lands. In the Holladay Village, there is a requirement for a public amenity with development. As a result, there might be improved bus shelters or seating areas.

Chair Roach referenced Page 8 of the handout that was provided to the Commission. It lists the required versus the proposed. Ms. Marsh explained that this is related to the PUD. Conceptually,

the lots all meet the standard, with the exception of the lot widths on the east side. The Commission discussed variances when a creek is involved. Ms. Marsh believed there is some allowance in the code for the Planning Commission to make exceptions to setbacks based on certain conditions. Mr. Christopherson noted that it is possible to have Subdivision approval before a variance, but it would be conditioned on that variance being granted, since both are needed.

Chair Roach asked about open space and tree preservation. He quesioned whether someone could state that the trees next to the creek are part of the tree preservation. Ms. Marsh pointed out that there could be more trees impacted in the area due to the limited space that can be used. Council Member Jill Fonte wanted to make sure there is preservation of the tree canopy. Ms. Marsh explained that there is a balance that can be achieved. There are always property rights being balanced during these discussions. Variances look at how the property rights are being limited. This is a situation where adjustments can be requested based on the limitation of those rights.

Commissioner Gong mentioned the proposed setbacks. She asked if there is no proposed setback or if the language is stating that there is no intention to have interior private roads. Ms. Marsh explained that there is uncertainty about what the footprints of the houses will be at this point, because the property owners have not made decisions about house plans. What has been submitted at this point is conceptual in nature. There is a desire to have some flexibility on what a front yard setback would be, so it is possible to bring some garages closer to the road.

Chair Roach referenced Page 8 of the Staff Report and noted that it lists what is required and proposed. Ms. Marsh reported that the Commission can require some setbacks. She shared information about the PUD and explained that the Covenants, Conditions, and Restrictions ("CC&R") limit how the property can be sold. It is unlikely that anyone outside of the private use would be impacted by the setbacks inside the project. Potential scenarios were discussed.

Chair Roach referenced the table in the Meeting Materials Packet and the drawing shown. Commissioner Berndt asked if there were problems with the setbacks and the private road. Ms. Marsh noted that it is possible to ask the applicant clarifying questions during the Regular Meeting. She believes the lighter line shown represents the private road. Commissioner Cunningham asked about the acreage. Mr. Christopherson clarified that the total acreage informs the density, but it is possible to adjust the size of the actual lot. The Planning Commission discussed what the PUD allows. Commissioner Gong asked if there is a requirement to have a fence along Holladay Boulevard. Ms. Marsh explained that it is not a requirement, but is something that has been incorporated into the design. She reviewed what is currently in place in the area, informing the Commission that there are examples of walls and chain link fences.

It was noted that additional discussions will take place on the "Amare Vita" agenda items during the Regular Meeting. The Work Session ended at approximately 6:00 p.m.

CONVENE REGULAR MEETING – Public Welcome and Opening Statement by Commission Chair.

Chair Roach called the Regular Meeting to order at approximately 6:00 p.m. and welcomed those present. All Commissioners are present with the exception of Commissioner Prince. Chair Roach explained that Item 2 on the meeting agenda will be considered ahead of the other agenda items. Commissioner Cunningham read the Opening Statement for the benefit of those present.

PUBLIC HEARING

1. **"Amare Vita" Residential Subdivision - Concept Plan - 6114, 6178, 6190 South Holladay Boulevard (R-1-43) and 2715 East 6200 South. (R-1-87) Conceptual Review and Consideration of a Residential Site Plan Proposed by Applicant J.U.B. Engineering to Subdivide 11.42 Acres of Land Consisting of 9 Lots within the R-1-43 and R-1-87 Zones. Item Reviewed as an Administrative Action for Permitted Uses in Accordance with Zone and Subdivision Standards Required by Holladay Ordinance §13.10A. *File #25-1-08.***

Ms. Marsh presented the Staff Report and explained that this item relates to the "Amare Vita" Residential Subdivision. She reviewed the process that will take place, as it is broken into three different steps. The Planning Commission will first look at a Conceptual Subdivision to see if the Subdivision meets minimum requirements for the zone. The Commission can open that Public Hearing at the current meeting, but it needs to remain open due to noticing requirements. The next two items on the meeting agenda, listed as Discussion Items, include the creation of a PUD and a Preliminary Plat. The Public Hearings for those items cannot be opened until there is a Conceptual Subdivision approved, which is the reason for the Discussion Items included on the agenda.

The Conceptual Subdivision information was shared. Ms. Marsh reported that Conceptual Subdivisions are based on minimum zoning requirements. This is slightly different than what a standard Subdivision might be, because it incorporates an element where a variance would be applicable. Variances are regulated by the State and there are five standards that have to be met.

Variance requests are typically heard by an Administrative Appeals Officer. The Administrative Appeals Officer makes the decision on the variance request. One of the items for a variance is a physical feature on a property that would limit the area to be developed. Examples of natural features include steep slopes, trails that cross through a property, easements that cross through a property, and natural features like waterways. In this case, there is Big Cottonwood Creek that must be taken into account. The City Ordinance does not allow for development within 100 feet of a creek bank, which significantly limits the buildable area.

The variance process has been incorporated into the Conceptual Subdivision. There is a proposal for a reduced minimum lot width. This allows for all of the lots on the east side of the creek to be accessible from a public road off of Holladay Boulevard. That moves any structures to be within 150 feet of the road for fire access. The total area on that side is 7.18 acres and there are seven lots laid out on that side. On the west side, there is a two-acre minimum lot size with 150 feet for lot width. Ms. Marsh reported that the lot widths are laid out and the frontage is a little bit smaller at 75% of the required width. The frontage for Lot 2 has been met because it is 75% of 150 feet.

Chair Roach opened the public hearing. There were no comments. The hearing remained open.

Commissioner Fonte moved to CONTINUE the Public Hearing for the "Amare Vita" Residential Subdivision. Commissioner Gong seconded the motion. Vote on Motion: Commissioner Cunningham-Aye; Commissioner Fonte-Aye; Commissioner Gong-Aye; Commissioner Berndt-Aye; Chair Roach-Aye. The motion passed unanimously.

DISCUSSION ITEMS (Associated with Agenda Item Number 1)

A. "Amare Vita" - Planned Unit Development Conditional Use Permit - 6114, 6178, 6190 South Holladay Boulevard (R-1-43) and 2715 East 6200 South. (R-1-87) Review and Consideration of a Request by Applicant J.U.B. Engineering to Subdivide 11.42 Acres of Land as a Planned Unit Development. Item Reviewed as an Administrative Application as per Provisions Stated in Holladay Ordinance §13.08.040. *File #25-1-08*.

B. "Amare Vita" Subdivision - Preliminary Plan/Plat - 6114, 6178, 6190 South Holladay Boulevard (R-1-43) and 2715 East 6200 South. (R-1-87) Preliminary Level Review and Consideration of Development Details by Applicant J.U.B. Engineering. Review of this 11.42 Acre (497,455 Square Foot) Residential Subdivision is Conducted According to R-1-43 and R-1-83 Zone Compliance and Subdivision Development Submittal and Review Standards According to Holladay Ordinance §13.10A. *File #25-1-08.*

Ms. Marsh reported that the first Discussion Item associated with Item 1 on the Regular Meeting agenda has to do with a PUD. She explained that this is a more unique situation with a PUD where it is being split across two zones. The proposed PUD plan was shared with the Commission. Ms. Marsh reported that there are seven lots on one side and two lots on the other side for a total of nine dwelling units. The applicant is proposing to shift one of the units from the R-1-87 Zone side to the R-1-43 Zone side to create a more clustered development on that side of the creek.

The applicant is proposing a singular access into the project area from Holladay Boulevard and another single access off of 6200 South. The bridge that goes across the creek connects the interior to the property, but it is not a fire access, so it will not be built to fire standards. It will be for the residents of the PUD to use as desired. Ms. Marsh discussed setbacks and reviewed a parcel map. The setback on Holladay Boulevard is 20 feet, and the applicant proposed that in their narrative as rear yard setbacks, but the orientation of the houses can be discussed with the applicant. She explained that there are conceptual homes shown, but the floor plans and layouts are not finalized.

Chair Roach asked for clarification about the map that was shared with the Commission. Ms. Marsh clarified that there is a proposed pool shown. She added that the PUD map simply identifies where the building areas would be. The building areas are shown going to the private road. It is possible to ask the applicant if there is an openness to a setback on those private roads.

The other perimeter setback on the south side is 20 feet. It was discussed during the Work Session that the neighboring property shown is a residential treatment center, so there is a parking lot. Ms. Marsh pointed out the roadway access, parking area, and the location of the treatment center. As for the existing structure shown on the map, there is a detached accessory structure. There is no proposal to keep the existing structures. Chair Roach believed the proposal was to remove what is existing there and push it further into the property if the PUD is approved, which was confirmed. Ms. Marsh explained that the intention is to move it closer to Holladay Boulevard and further away from the creek. She believes right now, the tennis court is within 50 feet, or at least part of it is within 50 feet. The full area is within 100 feet. The Commission further reviewed the map.

Commissioner Gong believed that anything that exists can remain but if there was a replacement, then it could not remain in the existing footprint. This was confirmed. Ms. Marsh is not certain whether the tennis court on the north side of the project area is intended to remain, but that is something the Commission can ask the applicant. She reported that a review of the PUD elements is included in the Meeting Materials Packet. Page 10 of the Staff Report states:

- Purpose Statement and Objectives: (4) Maximizing and preserving vegetation and open space and/or other special development amenities to provide light, air and privacy, to buffer abutting properties and to provide active and passive recreation opportunities for residents of the planned development and/or the community.

Chair Roach asked to discuss the tree canopy. He wanted to know if the red circles indicate the trees intended to come out, which was confirmed. Chair Roach mentioned the intersection inside the development and the fact that it is an entirely forested tree area. Ms. Marsh stated that it looks that way, but she is not certain. It was reiterated that it is possible to ask the applicant clarifying questions. Chair Roach asked how many neighbors within a quarter mile in the R-1-43 Zone have lot sizes less than 1 acre. He would like to know how many non-conforming lots there are in that zone and in the nearby area. Ms. Marsh reported that there was a previous analysis conducted to determine how many non-conforming properties are in the R-1-87 Zone and R-1-43 Zone. She offered to look into that and share additional information with the Commission at a future meeting.

Chair Roach asked the applicant to address some of the Commissioners' comments. Brandon Ames introduced himself to the Planning Commission and discussed the goals of the PUD. The landowner wanted to move here and build a forever home for himself and his wife, and then provide lots for their children. That is the overarching goal. Though the lots are there, not all of them will necessarily be used, depending on the desires of the individual children. The landowner wanted to provide an equal opportunity for the children, which was how the lot number was determined. In his estimation, it is likely that there will not be as many homes as proposed, but the landowner did not want to leave anyone out. Mr. Ames explained that the landowner is putting a lot of effort and thoughtfulness into the trees and what will be planted there. He wants to preserve nature and the creek. Chair Roach asked for additional information about the Preliminary Tree Preservation Map included in the Meeting Materials Packet. Mr. Ames explained that if something is not shown in red, then it is not planned to be removed. The intention is to leave whatever is not marked.

There was additional discussion about the tree canopy in the area. Mr. Ames reiterated that the landowner has been thoughtful about the trees and landscaping. He believes the lot sizes are close to 1 acre. Ms. Marsh reviewed the lot sizes and stated that 0.72 acres is the smallest proposed. Mr. Ames reported that the bridge over the creek will look natural. This is a unique opportunity for the landowner and his family members. This is not a financially driven PUD that is intended to maximize density beyond accommodating the different family members. Chair Roach appreciated the clarification. He acknowledged that this is a unique application and explained that the Planning Commission wants to make sure everything is thought through and done correctly.

As far as the setback off of Holladay Boulevard, Chair Roach asked if it is in the application to have the minimum 20-foot setback on any building pads off of that road. This was confirmed. Ms. Marsh reported that this development will have a dedication of 7 feet, which is associated with

roadway and shoulder improvement. Commissioner Gong asked if the improvements include a sidewalk. Ms. Marsh denied this and explained that it would increase the shoulder width.

Mr. Ames mentioned the wall on 6200 and the wall to the north. Both of those are old and somewhat unique. The landowner does not intend to do anything with those, because he recognizes the historic significance. Any privacy will be built behind those existing walls, with enough space provided not to disturb them or disturb the tall pines along 6200. Chair Roach asked if the preservation of those walls is included in the PUD application. Ms. Marsh does not know that there is anything designated, but that is something that could be included. She pointed out a dedication that exists, which is 40 feet wide. There is a monument there that will go to public access and the gate will be 18 feet back from the new property line. Ms. Marsh recommended that the Commissioners visit that location before the next Planning Commission discussion.

Mr. Ames reported that near the existing gate, there are parts of the old wall that are crumbling. There are intentions to use the same material and restore it where necessary. Chair Roach believes that if the intent of the applicant is to preserve the wall, it should be mentioned in any future motion language. Commissioner Cunningham asked if it is intended that all of the visitor parking will be interior to the site, which was confirmed. There will not be visitor parking on Holladay Boulevard.

There was discussion about the gate that will be 18 feet back from the new property line. Ms. Marsh explained that the 18 feet comes from the Fire Code. There has to be enough space for a vehicle to pull fully into a driveway and wait for a gate to open. Commissioner Cunningham does not believe 18 feet is sufficient on Holladay Boulevard, as there will be a lot of interior traffic from delivery vehicles. When there is a busy road, it makes sense to accommodate more than one vehicle. He does not want bicyclists using the bicycle lane to be squeezed into the roadway. Chair Roach asked if his proposal was to have a further setback on the gate, which was confirmed. Commissioner Cunningham would like to see enough room for two vehicles there.

Commissioner Gong asked if Commissioner Cunningham had a similar concern off of 6200. Commissioner Cunningham pointed out that there is more room between the designated travel lane and the traffic is a little bit slower on 6200. Ms. Marsh mentioned the extra area that is being dedicated and reiterated that there will be a larger shoulder. Holladay Boulevard is a 40-foot-wide right-of-way, so it is a little bit wider than some of the other streets. Commissioner Cunningham asked about the lack of a sidewalk. Ms. Marsh explained that a lot of this comes down to the General Plan and where sidewalks are required. Commissioner Gong asked about the rationale for a gate. Mr. Ames clarified that the gate is intended to increase safety and privacy in the project area.

Commissioner Fonte did not think it made sense to assume that the development will remain in the family in perpetuity, so future residents need to be taken into consideration in this process. Mr. Ames reported that CC&Rs and Homeowners Association ("HOA") language is being written. That language will focus on the preservation of nature and the creek. In the CC&Rs, there will be a pattern book to ensure that there will be a similar feel to the homes, regardless of the builder.

Commissioner Berndt noted that on Lot 4, there is a pipeline and a diversion easement. He asked if there is a width to that, because it looks like it cuts through where the buildable area will be. There are concerns that this could create some sort of conflict. Mr. Ames recalled that it is being

abandoned because it was found that there is nothing there now. Ms. Marsh reported that it would not be designated as abandoned until there was legal documentation in place. The Commission discussed the easement and the pipe. The easement is the shape of an old parcel that existed previously. Ms. Marsh explained that language related to this can be incorporated into a Condition of Approval. It could state that before Final Plat, there must be verification that the existing easement, specifically the pipe and drainage easement, is abandoned or no longer necessary. She noted that this kind of process takes place occasionally with power lines. If it cannot be abandoned, then it is still possible for the applicant to look into relocation of the pipe.

Commissioner Berndt mentioned the setbacks that are located in the private road. The house could actually be built on the road, according to the setbacks. Mr. Ames clarified that it is a PUE and not a setback. Ms. Marsh shared additional documents with the Commission for clarification. When it comes to PUDs, there could be multiple dwelling units in a single structure. In this situation, the intention is to have them on individual lots, but the applicant would like to have the ability to build to whatever extent that is without set setbacks for each. It is still possible to implement limitations on the total coverage within the project, which has been done in other PUDs. Commissioner Berndt thought there was a minimum setback. Ms. Marsh explained that this is typically on the perimeters. Mr. Ames pointed out that it is not possible to build over the PUE, so essentially, the PUE will serve that function. There was discussion about the buildable area.

Commissioner Berndt asked if the creek is considered open space, which was confirmed. Ms. Marsh noted that there could be a requirement that there be some open space amenity that is accessible to those living there. Commissioner Berndt pointed out that the creek is established open space, so there is nothing additional being provided. Commissioner Cunningham asked about Lot 8. It appears the amenity is part of the 0.79 acres, but it is an amenity that is likely for the HOA rather than the owner of that specific lot. He asked if that area would need to be deducted from the size of the lot. Ms. Marsh does not know if the PUD has set requirements that amenities have to be in a common area rather than privately owned. A lot of that can be addressed in the CC&Rs as far as how access to amenities is managed. Similarly, all of the lots that border the creek have a public amenity, but it is all privately owned and incorporated into their lot size. For instance, Lot 6 has a creek area included, but it is still within their private property. In terms of ownership, this is likely the easiest way to parcel it out so everyone has a similarly sized property.

Commissioner Gong commented that the Planning Commission considers City Ordinances but not CC&Rs. Chair Roach confirmed that CC&Rs are not enforceable by the City. Ms. Marsh explained that in the future, if the property were sold, it would be sold with the CC&Rs in place. In order to remove CC&Rs, all of the properties would need to agree and then have them removed or amended. There are specific requirements with HOAs that dues need to be paid and there has to be a Board in place. There are legal requirements that need to be met. That becomes a legal process for enforcement of the regulations, but it is not something the City itself will handle.

Chair Roach would like more clarity on the Lot 4 tree canopy at a future meeting, because right now, it appears that a house will replace the forest. When it comes to a PUD that is as heavily wooded as this one is, he is less concerned about the specific trees preserved than he is about the overall canopy. Mr. Ames has done some reading and believes there are four main points about trees and what constitutes a heritage tree. There is work being done with a Landscape Architect to ensure that there is compliance with the City Code. Ms. Marsh reported that there is an inventory

and some proposed replacement trees are listed. The mature canopy size is also included in the document. The total tree count on the site is 734 and there is a breakdown into different groups. There is a balance between providing some level of flexibility and the requirements that are in place. The Commission needs to decide whether some designated areas need to be shown or if there is comfort with specifically stating that there must be tree replacement of an equivalent amount.

Commissioner Fonte asked to review the submitted information about the canopy. There is mention of a mature canopy and the square footage provided by the proposed trees. She asked if that canopy will be provided at maturity of those trees, which was confirmed. Ms. Marsh reported that there is a sustainability portion of tree preservation. When trees age, certain health issues might occur, so it is important to have new trees planted that will grow to maturity.

Chair Roach wrote down some of the items that were discussed during the meeting. This includes: preservation language related to the stone walls, additional clarity on tree preservation, and finding out how many neighbors within a certain distance of the project are non-conforming in the R-1-43 Zone. Commissioner Cunningham would like additional information about the gate. There can also be some clarification about how some of the amenities will be managed.

Commissioner Fonte asked if whether the landowner will develop all of the properties and whether all of the family members want to move in or not. Mr. Ames is not certain. He believes the landowner wants to make the properties available to his family members, but there is one child in particular who would like to build there. As for a swimming pool, he does not know the probability of that being built. He reiterated that what has been shared so far is conceptual in nature. The Commission further discussed the amenities and whether those are viewed as public or private. Ms. Marsh explained that the amenities would be usable by those living in the development.

ACTION ITEMS

2. "Oly Vista" Subdivision - Amendment - 4877 South Holladay Boulevard (R-1-10) Review and Consideration of an Application by Application/Property Owner, Buck Swaney, to Amend the Boundaries of an Existing Subdivision. This Amendment will add 2,112.6 square feet to Lot 2 in the Oly Vista Subdivision. Item Reviewed as an Administrative Action for Permitted Uses in Accordance with Zone and Subdivision Standards Required by Holladay Ordinance §13.10A *File #22-1-03-3.*

Ms. Marsh presented the Staff Report and explained that this is a Subdivision Amendment for the "Oly Vista" Subdivision. It is located at 4877 South Holladay Boulevard and is in the R-1-10 Zone. This subdivision was approved in 2022, and there have been a few amendments for landscaping changes since that time. The amendment will add an additional area of land to Lot 2. It is on the east boundary of the Subdivision. The total area is 15 feet wide and 140.84 feet long, which would add 2,112.6 square feet to Lot 2. This would bring the total land area for Lot 2 to 0.51 acres. The required 10,000 square foot minimum lot size in the zone is still met for both properties in the Subdivision. The Technical Review Committee ("TRC") analysis is included in the Staff Report. Ms. Marsh offered to answer Commissioner questions about the application.

Chair Roach reported that the "Oly Vista" Subdivision Amendment was discussed during the Work Session and noted that this is a straightforward item. There were no Commissioner questions.

Commissioner Cunningham moved to APPROVE the Subdivision Amendment application by Landblu, LLC, to Lot 2 of the Oly Vista Subdivision, located at 4877 South Holladay Boulevard, in the R-1-10 Zone, based upon the following findings:

1. ***No petition from other owners in the Subdivision has been received. (Both lots are owned by the same owner.)***

2. ***The Subdivision Amendment complies with all Ordinances.***

3. ***The Amendment does not create any non-conformities.***

4. ***Fire access is unchanged.***

Commissioner Berndt seconded the motion. Vote on Motion: Commissioner Cunningham-Aye; Commissioner Fonte-Aye; Commissioner Gong-Aye; Commissioner Berndt-Aye; Chair Roach-Aye. The motion passed unanimously.

3. <u>Approval of Minutes - 05/6/2025 and 7/15/2025.</u>

Commissioner Gong moved to APPROVE the Meeting Minutes from May 6, 2025. Commissioner Fonte seconded the motion. Vote on Motion: Commissioner Cunningham-Aye; Commissioner Fonte-Aye; Commissioner Gong-Aye; Commissioner Berndt-Aye; Chair Roach-Aye. The motion passed unanimously.

Chair Roach moved to APPROVE the Meeting Minutes from July 15, 2025, as amended. Commissioner Fonte seconded the motion. Vote on Motion: Commissioner Cunningham-Aye; Commissioner Fonte-Aye; Commissioner Gong-Aye; Commissioner Berndt-Abstain; Chair Roach-Aye. The motion passed unanimously.

<u>ADJOURN</u>
Chair Roach moved to ADJOURN. There was no second. The motion passed with the unanimous consent of the Commission.

The Planning Commission Meeting adjourned at approximately 7:09 p.m.

I hereby certify that the foregoing represents a true, accurate, and complete record of the City of Holladay Planning Commission Meeting held on Tuesday, August 19, 2025.

Teri Forbes

Teri Forbes
T Forbes Group
Minutes Secretary

Minutes Approved: **December 2, 2025**